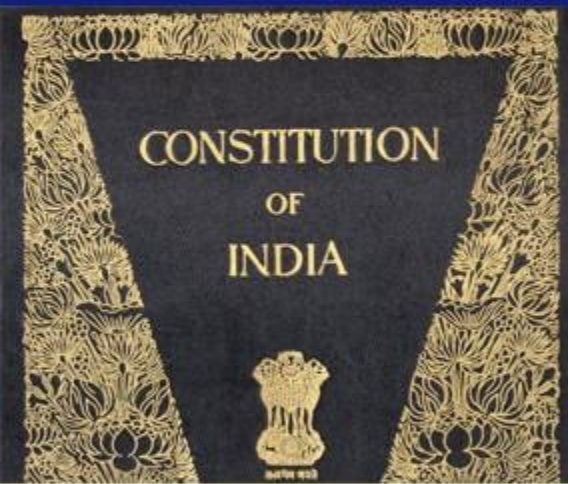


INDIAN POLITY



MODULE - 55

**THE PRESIDENT
VETO POWER**

INDIAN PRESIDENT

VETO POWER OF THE PRESIDENT

1

ABSOLUTE VETO

1

It refers to the power of the President to withhold his assent to a bill passed by the Parliament. The bill then ends and does not become an act.

2

Usually, this veto is exercised in the following two cases:

With respect to private members' bills (i.e., bills introduced by any member of Parliament who is not a minister)

With respect to the government bills when the cabinet resigns (after the passage of the bills but before the assent by the President) and the new cabinet advises the President not to give his assent to such bills.

INDIAN PRESIDENT

VETO POWER OF THE PRESIDENT

1 ABSOLUTE VETO

3 In the case of a Government Bill, a situation may occur where after the passage of a Bill and before it is assented to by the President, the Ministry resigns and the next Council of Ministers, commanding a majority in Parliament, advises the President to use his veto power against the Bill.

4 In such a contingency, it would be constitutional on the part of the President to use his veto power even though the Bill had been duly passed by Parliament.

What happens in reality?

- With the constitution stating that the President shall act in accordance with the advice of council of ministers, in practice there remains no case for an absolute or pocket veto if the bill has support of the government.
- Only in cases when the President feels that the government is unstable he may opt to do nothing (pocket veto). Or in case a private member bill which is not supported by the government (but has somehow managed to pass through legislature) the President can refuse to sign the bill (absolute veto).

VETO POWER OF THE PRESIDENT

2

SUSPENSIVE VETO



Even if the President has vetoed a bill, the bill can still become a law if the Parliament votes to override this veto!

1

The President exercises this veto when he returns a bill for reconsideration of the Parliament.

2

However, if the bill is passed again by the Parliament **with or without amendments** and again presented to the President, it is obligatory for the President to give his assent to the bill.

3

This means that the presidential veto is overridden by a re-passage of the bill by the same ordinary majority (and not a higher majority as required in USA).

INDIAN PRESIDENT

2 SUSPENSIVE VETO

1 President exercises this veto when he returns a bill for reconsideration of the Parliament.



2 If the bill is passed again by the Parliament, it is again presented to the President



3 Now, it is obligatory for the President to give his assent to the bill.

4 *This means that the presidential veto is overridden by a re-passage of the bill by ordinary majority*

7 He cannot return it for the reconsideration of the Parliament.

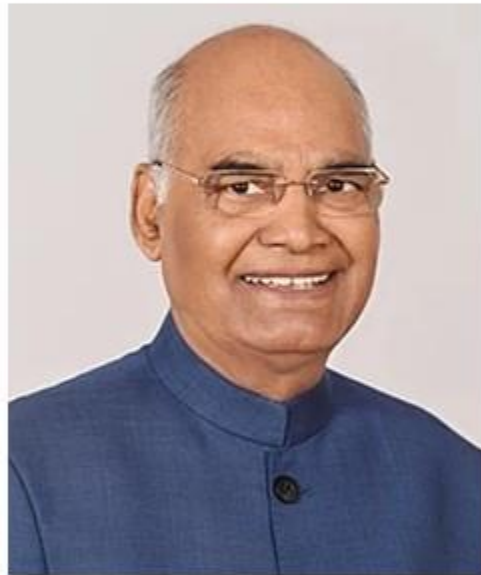
6 The President can either give his assent to a money bill or withhold his assent to a money bill

5 President does not possess this veto in the case of money bills.

INDIAN PRESIDENT

VETO POWER OF THE PRESIDENT

2 SUSPENSIVE VETO



4 As mentioned earlier, the President does not possess this veto in the case of money bills.

5 The President can either give his assent to a money bill or withhold his assent to a money bill but cannot return it for the reconsideration of the Parliament.

6 Normally, the President gives his assent to money bill as it is introduced in the Parliament with his previous permission.

INDIAN PRESIDENT

VETO POWER OF THE PRESIDENT

3

POCKET VETO



1 In this case, the President **neither ratifies nor rejects nor returns the bill**, but simply keeps the bill pending for an indefinite period.

2 This power of the President not to take any action (either positive or negative) on the bill is known as the pocket veto.

3 The President can exercise this veto power **as the Constitution does not prescribe any time-limit** within which he has to take the decision with respect to a bill presented to him for his assent.

INDIAN PRESIDENT

VETO POWER OF THE PRESIDENT

3

POCKET VETO

4

In USA, on the other hand, the President has to return the bill for reconsideration **within 10 days**.



The Pocket of the Indian President is bigger than that of the American President

5

Hence, ***it is remarked that the pocket of the Indian President is bigger than that of the American President.***

6

In 1986, President Zail Singh exercised the pocket veto with respect to the Indian Post Office (Amendment) Bill.

7

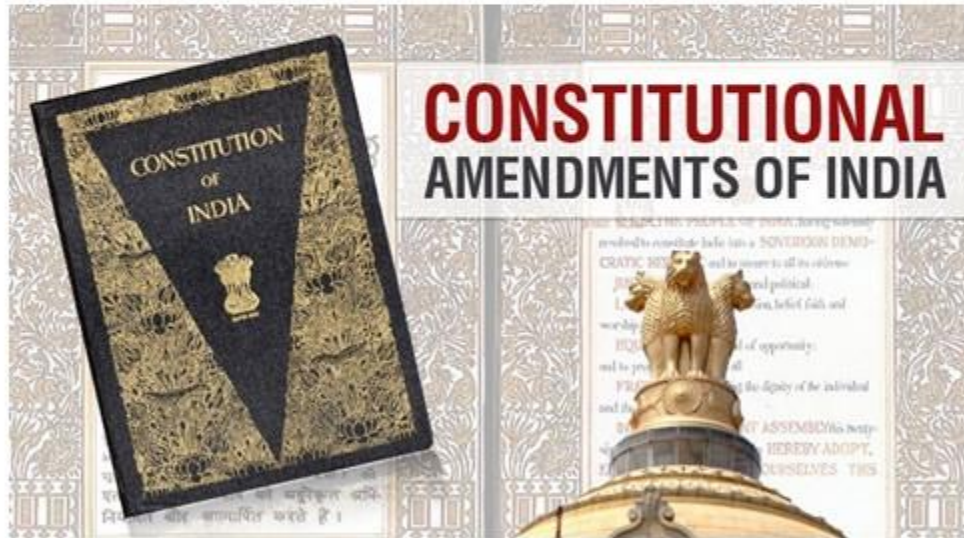
The bill, passed by the Rajiv Gandhi Government, imposed restrictions on the freedom of press and hence, was widely criticized.

INDIAN PRESIDENT

VETO POWER OF THE PRESIDENT

3

POCKET VETO



- 8 After three years, in 1989, the next President R Venkataraman sent the bill back for reconsideration, but the new National Front Government decided to drop the bill.
- 9 It should be noted here that the President has **no veto power in respect of a constitutional amendment bill**.
- 10 The 24th Constitutional Amendment Act of 1971 made it obligatory for the President to give his assent to a constitutional amendment bill.

INDIAN PRESIDENT

DIFFERENCE BETWEEN POCKET VETO AND ABSOLUTE VETO

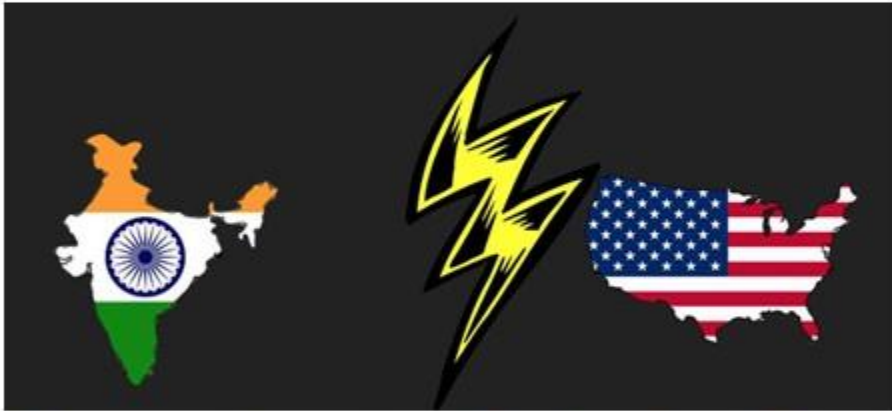
ABSOLUTE VETO

- 1 Absolute veto is when the President withholds his assent to any bill passed by the legislature.
- 2 Thereby, the bill will not become an act.

POCKET VETO

- 1 The Constitution does not prescribe any time-limit within which the President is to declare his assent or refusal, or to return the Bill.
- 2 Article 111 simply says that if the President wants to return the Bill, he shall do it 'as soon as possible'.
- 3 By reason of this absence of a time-limit, it seems that the Indian President would be able to exercise a 'pocket veto', by simply keeping the Bill on his desk for an indefinite time.
- 4 He uses this particularly, if he finds that the Ministry is shaky & is likely to collapse shortly.

DIFFERENCE BETWEEN SUSPENSIVE VETO AND QUALIFIED VETO



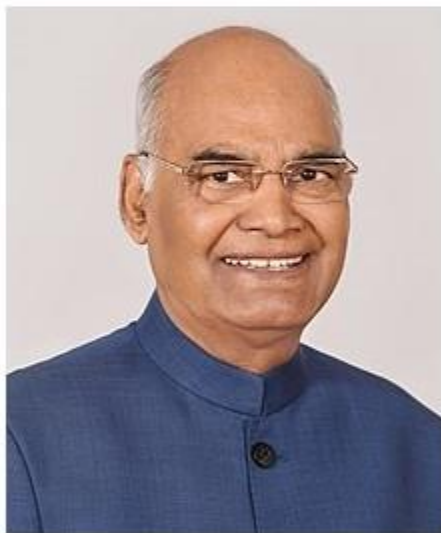
*Suspensive veto of Indian President
vs Qualified veto of US President*

- 1 If, however, instead of refusing his assent outright, the President remits the Bill for reconsideration, a re-passage of the Bill by an ordinary majority would compel the President to give his assent.
- 2 This power of the Indian President, thus, differs from the qualified veto in the United States insofar as no “extraordinary” majority is required to effect the enactment of a returned Bill.
- 3 The effect of a return by the Indian President is thus merely ‘suspensive’.
- 4 As has been stated earlier, this power is not available in the case of Money Bills.

INDIAN PRESIDENT

VETO POWER OF THE PRESIDENT

PRESIDENTIAL VETO OVER STATE LEGISLATION



1

The President has veto power with respect to state legislation also.

2

A bill passed by a state legislature can become an act only if it receives the assent of the governor or the President (in case the bill is reserved for the consideration of the President).

VETO POWER OF THE PRESIDENT

PRESIDENTIAL VETO OVER STATE
LEGISLATION

- 3 When a bill, passed by a state legislature, is presented to the governor for his assent, he has four alternatives (under Article 200 of the Constitution):
1. He may **give his assent** to the bill
 2. He may **withhold his assent** to the bill
 3. He **may return the bill** (if it is not a money bill) for reconsideration of the state legislature
 4. He **may reserve the bill** for the consideration of the President.

- 4 When a bill is reserved by the governor for the consideration of the President, the President has three alternatives (Under Article 201 of the Constitution):
1. He may give his assent to the bill
 2. He may withhold his assent to the bill
 3. He may direct the governor to return the bill (if it is not a money bill) for the reconsideration of the state legislature.

INDIAN PRESIDENT

VETO POWER OF THE PRESIDENT

PRESIDENTIAL VETO OVER STATE LEGISLATION

- 5** If the bill is passed again by the state legislature with or without amendments and presented again to the President for his assent, the President is not bound to give his assent to the bill.



- 6** This means that the state legislature cannot override the veto power of the President.

- 7** Further, the Constitution has not prescribed any time limit within which the President has to take decision with regard to a bill reserved by the governor for his consideration.

- 8** Hence, the President can exercise pocket veto in respect of state legislation also.

INDIAN PRESIDENT

VETO POWER OF THE PRESIDENT AT A GLANCE

CENTRAL LEGISLATION	STATE LEGISLATION
With Regard to Ordinary Bills	
▪ Can be ratified	▪ Can be ratified
▪ Can be rejected	▪ Can be rejected
▪ Can be returned	▪ Can be returned
With Regard to Money Bills	
▪ Can be ratified	▪ Can be ratified
▪ Can be rejected (but cannot be returned)	▪ Can be rejected (but cannot be returned)
With Regard to Constitutional Amendment Bills	
Can only be ratified (that is, cannot be rejected or returned).	Constitutional amendment bills cannot be introduced in the state legislature.

ORDINANCE-MAKING POWER OF THE PRESIDENT



ORDINANCE

- 1 Article 123 of the Constitution empowers the President to promulgate ordinances during the recess of Parliament.
- 2 These ordinances have the same force and effect as an act of Parliament, but are in the nature of temporary laws.
- 3 The ordinance-making power is the most important legislative power of the President.
- 4 It has been vested in him to deal with unforeseen or urgent matters.

INDIAN PRESIDENT

ORDINANCE-MAKING POWER OF THE PRESIDENT

FOUR LIMITATIONS OF THIS POWER

LIMITATION NO. 1

NOT A PARALLEL POWER!

- 1 He can promulgate an ordinance only when both the Houses of Parliament are not in session or when either of the two Houses of Parliament is not in session.



PARLIAMENT OF INDIA

- 2 An ordinance can also be issued when only one House is in session because a law can be passed by both the Houses and not by one House alone.
- 3 An ordinance made when both the Houses are in session is void.
- 4 Thus, the power of the President to legislate by ordinance is **not a parallel power of legislation**.

INDIAN PRESIDENT

ORDINANCE-MAKING POWER OF THE PRESIDENT

FOUR LIMITATIONS OF THIS POWER

LIMITATION NO. 2

CIRCUMVENTING PARLIAMENT??



1 He can make an ordinance only when he is satisfied that the circumstances exist that render it necessary for him to take immediate action.

2 In Cooper case, (1970), the Supreme Court held that the President's satisfaction can be questioned in a court on the ground of malafide.

INDIAN PRESIDENT

ORDINANCE-MAKING POWER OF THE PRESIDENT

FOUR LIMITATIONS OF THIS POWER

LIMITATION NO. 2

CIRCUMVENTING PARLIAMENT??

- 3
 - This means that the decision of the President to issue an ordinance can be **questioned in a court.**
 - This can be done on the ground that the President has prorogued one House or both Houses of Parliament deliberately with a view to promulgate an ordinance on a controversial subject.
 - It is argued that such a promulgation is done **so as to bypass the parliamentary decision and thereby circumventing the authority of the Parliament.**

- 4 The 38th Constitutional Amendment Act of 1975 made the President's satisfaction final and conclusive and beyond judicial review.

- 5 But, this provision was deleted by the 44th Constitutional Amendment Act of 1978.

- 6 Thus, the President's satisfaction is justiciable on the ground of malafide.

INDIAN PRESIDENT

ORDINANCE-MAKING POWER OF THE PRESIDENT

FOUR LIMITATIONS OF THIS POWER

COEXTENSIVE WITH PARLIAMENTARY POWER

LIMITATION NO. 3

- 1 His ordinance-making power is **coextensive as regards all matters except duration**, with the law-making powers of the Parliament.

ORDINANCE

- 2 This has two implications:
 - a) An ordinance can be issued only on those subjects on which the **Parliament can make laws**.
 - b) An ordinance is subject to the same **constitutional limitation as an act of Parliament**. Hence, an ordinance cannot abridge or take away any of the fundamental rights.

INDIAN PRESIDENT

ORDINANCE-MAKING POWER OF THE PRESIDENT

FOUR LIMITATIONS OF THIS POWER

LIMITATION NO. 4

SHORT TIME PERIOD OF ORDINANCE



PARLIAMENT OF INDIA



- 1 Every ordinance issued by the President during the recess of parliament must be laid before both the Houses of Parliament when it reassembles.
- 2 If the ordinance is approved by both the Houses, it becomes an act.
- 3 If Parliament takes no action at all, the ordinance **ceases to operate on the expiry of six weeks** from the reassembly of Parliament.

INDIAN PRESIDENT

ORDINANCE-MAKING POWER OF THE PRESIDENT

FOUR LIMITATIONS OF THIS POWER

LIMITATION NO. 4

SHORT TIME PERIOD OF ORDINANCE

4 The ordinance may also cease to operate even earlier than the prescribed six weeks, if both the Houses of Parliament pass resolutions disapproving it.

5 If the Houses of Parliament are summoned to reassemble on different dates, the period of six weeks is calculated from the later of those dates

6 This means that the maximum life of an ordinance can be six months and six weeks, in case of non-approval by the Parliament (six months being the maximum gap between the two sessions of Parliament).

7 If an ordinance is allowed to lapse without being placed before Parliament, then the acts done and completed under it, before it ceases to operate, remain fully valid and effective.

WE EXPRESS OUR SINCERE THANKS FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao
K. Srikanth
D. Sunil Kumar
L. V. Krishna
Y. Deepthi

Amrita Naidu
M. Binukrishna
G. Ravi Babu
D. Joji
K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2
0 9 8 4 9 9 4 2 2 9 9